

Gyan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 January 2019 · WRIT - C No. 3522 of 2019 · WRIT - C No. 3522 of 2019 · **Writ disposed; petitioner directed to Clause 6.8 objection; recovery citation stayed pending Executive Engineer's decision.**

HEADNOTE

A writ seeking quashing of a recovery citation for electricity dues, where the recovery is not disputed to be in pursuance of theft, is not decided on merits. The consumer has an alternative remedy of representation or objection before the Executive Engineer under Clause 6.8 of the Electricity Supply Code, 2005. The citation was kept in abeyance subject to a time-bound decision on that objection.

FACTUAL SUMMARY

Gyan Singh sought quashing of a recovery citation dated 22 December 2018 for Rs.1,21,821 towards electricity dues. An FIR had been lodged against him, and he had filed a complaint before the Chief Judicial Magistrate against officials of the Electricity Department, which remained pending. It was not disputed that the recovery was in pursuance of an allegation of theft. The Division Bench did not examine the assessment and instead treated Clause 6.8 of the Electricity Supply Code, 2005 as the forum for the petitioner's objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

alternative-remedy-clause-6.8

HOLDING

A consumer facing a recovery citation for electricity dues founded on an admitted theft allegation has an alternative remedy of representation or objection before the Executive Engineer under Clause 6.8 of the Electricity Supply Code, 2005. The writ was disposed with a direction that, if the petitioner appears on the appointed date with the objection and a certified copy of the order, the Executive Engineer shall consider and decide it in accordance with law within two weeks; the citation remains in abeyance subject to that decision.

¶ 1

FLAG Court applied Clause 6.8 (UUE procedure) to a theft recovery; Clauses 8.1–8.2 not addressed.

PRINCIPLE TAGS

opportunity-before-final-assessment A writ seeking quashing of a recovery citation for electricity dues, where the recovery is not disputed to be in pursuance of theft, is not decided on merits. The consumer has an alternative remedy of representation or objection before the Executive Engineer under Clause 6.8 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — SUSTAINABILITY OF THE RS.1,21,821 THEFT ASSESSMENT AND RECOVERY CITATION ON MERITS

¶ 1

NOT DECIDED — THE PENDING COMPLAINT BEFORE THE CHIEF JUDICIAL MAGISTRATE AGAINST ELECTRICITY OFFICIALS

Recorded as still pending; not examined. ¶ 1

